

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.

defendant waived its right to arbitration. To establish the defense of waiver, plaintiff bears the burden to prove by clear and convincing evidence that defendant knew of the arbitration right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “[I]ntentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it.” (*Ibid.*) Plaintiff must show it is highly probable the facts that support waiver are true. (*Ibid.*)

Here, defendant intentionally abandoned its right to arbitration because it knew about its right to arbitration as it reserved two separate hearings for a motion to compel arbitration on August 21, 2025, and November 20, 2025—that was ultimately continued to March 5, 2026—yet the hearings were dropped because defendant did not file any moving papers with the court. Moreover, defendant acted inconsistent with its right to enforce contractual arbitration because it did not properly move for arbitration until 14 months after it filed its answer and during the 14-month period between answering and moving to compel arbitration it responded to discovery, propounded interrogatories, issued deposition notices, sent inspection demands, and engaged in law and motion proceedings.

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

5. S-CV-0054211 BRYANT, KANDIE v. MAIDU DENTAL

Defendant Luminita Markham’s Motion to Compel Response to Request for Statement of Damages

Defendant moves to compel a response to her request for statement of damages served on plaintiff via email on January 16, 2026. Specifically, defendant requests plaintiff to provide an itemized description of the following damages:

1. Hospital expenses and bills, if any;
2. Doctor, nurse, therapist or other medical practitioner expenses and bills, if any;
3. Wage or income loss, if any;
4. Diminution of earning capacity, if any;
5. General damages, including, but not limited to, pain and suffering, humiliation, embarrassment, and inconvenience.

Code of Civil Procedure section 425.11, subdivision (b) provides

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When a complaint is filed in an action to recover damages for personal injury or wrongful death, the defendant may at any time request a statement setting forth the nature and amount of damages being sought. The request shall be served upon the plaintiff, who shall serve a responsive statement as to the damages within 15 days. In the event that a response is not served, the defendant, on notice to the plaintiff, may petition the court in which the action is pending to order the plaintiff to serve a responsive statement.
(Code Civ. Proc., § 425.11, subd. (b).)

Plaintiff has not provided a statement of damages.

To determine whether a claim is for personal injury, courts “should look to the nature of the tort rather than the type or extent of damages pled.” (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 755 [internal quotation marks omitted].)

Here, plaintiff’s alleged causes of action against defendant for assault and battery constitute claims for personal injury because the nature of the torts are for defendant’s alleged striking of plaintiff’s body that caused “severe mental and emotional distress, including but not limited to humiliation, mental anguish, anxiety, worry, nervousness, fright, and physical distress.” Accordingly, a statement of damages is proper here where, as here, the complaint seeks to recover damages for personal injuries.

Defendant’s requests for damages fits within the categories of information included the mandatory judicial council form CIV-050.

Accordingly, defendant’s motion is granted. Plaintiff shall complete and provide to defendant a completed statement of damages on judicial council form CIV-050 within 15 days after service of the order after hearing.

6. S-CV-0056811 AKANA, KENT v. NATH, PRANAY

Plaintiff’s Motion for Preliminary Injunction

Preliminary Matters

The court declines to consider the declarations of Scott Shaw and James Filippi and any exhibits attached thereto filed in connection with plaintiff’s reply papers because new evidence is not permitted in reply papers.